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FORMAL ADMINISTRATIVE CLAIM FOR PATENT INFRINGEMENT UNDER DFARS 227.7004 AND NOTIFICATION OF PROCUREMENT IRREGULARITIES CONCERNING PERPETUALLY LICENSED TECHNOLOGIES

This notice:
https://storage.googleapis.com/rj-aguiar/01_DFARS_227.7004_Lockheed-Martin.pdf

TO: PROCURING CONTRACTING OFFICERS (PCOs) AND DIRECTORS

michael.schmidt@us.af.mil (Lt. Gen. Mike Schmidt, Program Executive Officer, F-35 JPO)

F-35 Joint Program Office (JPO) – Contracting Directorate

CC: EXECUTIVE LEADERSHIP, CORPORATE COUNSEL, AND MILITARY IP COUNSEL

kevin.j.oconnor@lmco.com (Kevin J. O'Connor, Legal Counsel, Lockheed Martin)

craig.martell@lmco.com (Craig Martell, Vice President and Chief Technology Officer, Lockheed Martin)

valerie.browning@lmco.com (Valerie Browning, Vice President of Research and Technology, Lockheed Martin)

emil.michael@osd.mil (The Honorable Emil Michael, Under Secretary of Defense for Research and Engineering / Chief Technology Officer)

Chief of the Intellectual Property Law Division (JALS-IP), U.S. Army Legal Services Agency

RE: ACTUAL KNOWLEDGE OF PATENT INFRINGEMENT (35 U.S.C. § 154(d)), INITIATION OF DFARS 227.7004 ADMINISTRATIVE CLAIM, AND NOTIFICATION OF POTENTIAL PROCUREMENT FRAUD BY LOCKHEED MARTIN CORPORATION

DATE: April 17, 2026

DELIVERY METHOD: Cryptographically Verified via Registered Email (RPost)

DEAR:

Lt. Gen. Schmidt and the F-35 JPO Contracting Directorate,

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This comprehensive technical and legal brief is served upon you in your official capacities within the United States Department of Defense (DoD).

This document constitutes a formal Administrative Claim for Patent Infringement under the Defense Federal Acquisition Regulation Supplement (DFARS) 227.7004. The purpose of this claim is to notify the United States Government of a highly anomalous and legally precarious situation involving the unauthorized commercialization of a foundational patent portfolio by Lockheed Martin Corporation.

I. THE U.S. DEPARTMENT OF DEFENSE LICENSE GRANT AND STRATEGIC BLOCKADE

Under standard operating procedures defined by 28 U.S.C. § 1498, the United States Government exercises eminent domain over domestic patents, shielding its defense contractors from civil injunctions and assuming financial liability for infringement.

However, the inventor of the Aguiar Marcano Intellectual Property Portfolio—which comprises 52 foundational patent applications published defensively in *The Architecture of Control* (ISBN 978-1-97-148129-6)—has proactively granted an irrevocable, perpetual, no-fee license to the federal government for all national defense purposes. The United States Department of Defense, specifically through Under Secretary of Defense Emil Michael, has been placed on direct notice of this license grant and is the designated authority administering this license on behalf of the military.

Lockheed Martin is currently utilizing these specific patented architectures to overcome severe computational bottlenecks in their aerospace and quantum programs. By embedding the research, development, and licensing costs of these technologies into multi-billion-dollar government contracts, Lockheed Martin is effectively charging the American taxpayer for intellectual property that the government already possesses the legal right to utilize indefinitely and without cost. Failing to halt the disbursement of funds to this contractor for pre-licensed intellectual property constitutes a gross mismanagement of taxpayer dollars.

II. Satisfaction of DFARS 227.7004 Administrative Claim Requirements

To compel immediate administrative intervention, this communication strictly adheres to the requirements of DFARS 227.7004(a) and (b):

1. **Allegation of Infringement:** We formally allege that the systems provided and developed by Lockheed Martin directly infringe upon the patent applications detailed

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below.

2. **Request for Compensation:** Because the government holds a free license to this portfolio, our request for compensation is a formal legal demand that the DoD immediately cease compensating Lockheed Martin for the licensed intellectual property.
3. **Citation of Patents:** The infringed applications include USPTO 19/639,219; 19/560,038; 19/562,838; and 19/562,845.
4. **Identification of Procurements:** See Section III below for the specific systems and contracting activities.
5. **Element-by-Element Comparison:** The required claim maps demonstrating precisely how the representative claims map to the accused software and processes are attached to this verified transmission.

III. Technological Nexus and Targeted Procurements

Lockheed Martin's most critical modernization efforts intersect directly with our proprietary claims, making their government contracts highly susceptible to this administrative review.

A. F-35 Technology Refresh 3 (TR-3) and the Integrated Core Processor

Responsible Activity: F-35 Joint Program Office (JPO)

The TR-3 upgrade is designed to modernize the computational core of the F-35 via a new L3Harris integrated core processor and a new aircraft memory unit, promising a 25x computing increase. Attempting to achieve this massive increase in computational throughput within the strict thermal and weight constraints of an airborne fighter requires abandoning traditional electrical data buses.

- **USPTO 19/560,038 (Optical Computing Architecture) & USPTO 19/562,838 (Energy-Efficient Computing via Clock Speed Reduction):** These patents define a holistic data fabric that replaces electrical I/O bottlenecks with a massively parallel optical interconnect, enabling a reduction in clock speed while maintaining high throughput. Any TR-3 processor upgrades utilizing internal optical data buses to mitigate thermal output directly infringe upon these hardware claims.
- **USPTO 19/639,219 (Central Processing Unit Architecture for Native Parametric and Symbolic Computation):** Upgrading the F-35's core processing capabilities to handle

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advanced sensor fusion natively relies upon our parametric high-radix architecture.

B. Strategic Quantum Computing and QML Partnerships

Responsible Activity: Lockheed Martin Research and Technology / Defense Innovation Unit (DIU)

Target Leadership: Craig Martell (CTO) and Valerie Browning (VP, Research & Technology)

Lockheed Martin is aggressively pursuing quantum technologies for aerospace and defense, recently signing strategic collaborations with PsiQuantum (November 2025), Xanadu (February 2026), and Fujitsu (February 2026). These partnerships focus on deploying fault-tolerant quantum algorithms, Quantum Machine Learning (QML), and dual-use AI/ML edge computing.

- **USPTO 19/562,845 (Physically Disaggregated Computing Systems):** To achieve the hybrid quantum-classical workflows required by these new partnerships, Lockheed Martin must utilize a disaggregated architecture where classical GPUs and quantum processing units (QPUs) are segregated yet interconnected via an ultra-high-bandwidth data fabric. This exact hybrid integration model is legally encumbered by our portfolio.

IV. Statutory and Ethical Mandates

Because Lockheed Martin operates as a publicly traded corporate entity bound by strict compliance and ethical frameworks, we must formally remind your corporate leadership and legal counsel of the following obligations:

1. SEC Disclosure Requirements for Public Companies

For Lockheed Martin Corporation, we remind you that if you find yourselves potentially infringing any of the Inventions covered in this intellectual property portfolio, you are legally obligated to assess whether it is necessary to notify your investors and file a material risk disclosure notice with the Securities and Exchange Commission (SEC). The failure to disclose a material intellectual property encumbrance that threatens your core aerospace platforms (such as the F-35) constitutes a severe breach of fiduciary duty.

2. Attorney Ethical Obligations (Model Rule 8.3)

A direct reminder is issued to the Chief Legal Officers, General Counsels, and all retained outside counsel receiving or reviewing this notice (including Kevin J. O'Connor): You are strictly bound by your ethical obligations, including ABA Model Rule of Professional Conduct 8.3. You maintain an affirmative obligation to report any unprivileged knowledge of wrongdoing that raises a substantial question as to a lawyer's honesty, trustworthiness, or fitness. If your internal audits reveal evidence of coordinated intellectual property theft or procurement fraud that

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may compromise the integrity of a court, you are ethically mandated to report such conduct to the appropriate professional authorities.

V. Immutable Audit Trail and Mandatory Administrative Action

This formal claim is delivered via Registered Email (RPost). This service provides an immutable, cryptographically verified audit trail, including proof of delivery, message content, and the exact official time of sending and opening.

As warranted Procuring Contracting Officers, if you receive cryptographically verified proof that a contractor is charging the government for freely available intellectual property, your failure to initiate an audit or halt payments leaves a permanent digital footprint of your inaction. This exposes you to severe administrative and potentially criminal liability for complicity in procurement fraud.

Pursuant to federal acquisition regulations, you are hereby mandated to freeze approvals related to the disputed intellectual property, halt the assumption of clear title for the F-35 TR-3 upgrades, and forward this communication immediately to the Intellectual Property Law Division of your respective branches.

V/R,

Reinaldo Aguiar Marcano

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